

Warsaw, July 5, 2022

Decision

ZSPR.440.1055.2019

Based on Article 104 § 1 of the Act of June 14, 1960, the Code of Administrative Procedure (Journal of Laws of 2021, item 735, as amended) in conjunction with Article 6, Article 12(2) and (3), Article 17(1), and Article 58(2)(b) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35), Article 7(1) of the Personal Data Protection Act of May 10, 2018 (Journal of Laws of 2019, item 1781), after conducting administrative proceedings regarding the complaint of Mr. R. P., residing in Ł., concerning irregularities in the processing of his personal data by B. Joint Stock Company based in W. (legal successor of Z. Sp. z o.o. based in W.), consisting of the failure to respond to his request for the deletion of his personal data, the President of the Personal Data Protection Office issues a warning to B. Joint Stock Company based in W. for violating Article 12(3) in conjunction with Article 17(1) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35), consisting of the failure to respond to Mr. R. P., residing in Ł., regarding his request for the deletion of data.

Justification

The Personal Data Protection Office received a complaint from Mr. R. P., residing in Ł., hereinafter referred to as the Complainant, regarding irregularities in the processing of his personal data by B. Joint Stock Company based in W. (legal successor of Z. Sp. z o.o. based in W.), hereinafter referred to as the Company, consisting of the failure to respond to the Complainant regarding his request for the deletion of his personal data. The Complainant approached the then administrator (F. Sp. z o.o.) with a request for the deletion of his personal data, simultaneously requesting confirmation of its execution. During the conducted explanatory proceedings in this matter, the President of the Personal Data Protection Office established the following.

On [...] January 2019, to the email address (...) of the gym [...] – [...], the Complainant sent an email requesting the deletion of his personal data from the gym's database (evidence: letter from the Complainant dated [...] March 2019, email dated [...] January 2019). At the time of the Complainant's request for the deletion of his personal data, the gym operating under the brand [...] was managed by F. Sp. z o.o. based in W. As a result of the procedure of merger by acquisition conducted under Article 492 § 1 point 1 of the Commercial Companies Code (Journal of Laws of 2020, item 1526, consolidated text), hereinafter referred to as Ksh, by transferring all assets of F. Sp. z o.o. to Z. Sp. z o.o. based in W., as the acquiring company, a merger of Z. Sp. z o.o. and F. Sp. z o.o. occurred. Subsequently, on [...] November 2019, a merger procedure by acquisition was conducted, i.e., by transferring all assets of Z. Sp. z o.o. to B. Joint Stock Company based in W., as the acquiring company. As a result of the aforementioned merger procedure, B. succeeded to all rights and obligations of Z. Sp. z o.o. (evidence: explanations from the Company dated [...] February 2020, printout from the National Court Register of Companies).

According to the submitted explanations, at the time of the Complainant's request to the then data administrator, i.e., F. Sp. z o.o., his data was not being processed in the systems of the gym [...] (evidence: explanations from the Company dated [...] February 2020). In response to the Complainant's request dated [...] January 2019, Z. Sp. z o.o. (as the then administrator) replied on [...] June 2019, informing him that it did not process and does not process the Complainant's personal data in the systems of the gym operating under the brand [...] (evidence: explanations from the Company dated [...] February 2020). The Company indicated that the Complainant's email was classified by the spam filter of the mail server as a message violating security rules, resulting in the automatic transfer

of the message to the spam list, and consequently, the indicated message was overlooked. According to security rules, such emails are treated as a threat to the mail system. The Company took measures to prevent such situations in the future by changing the configuration of mailboxes accessible to authorized employees and introduced a procedure for mandatory review of the spam folder and deletion of messages only after verification by an employee (evidence: explanations from the Company dated [...] February 2020).

After reviewing the evidence gathered in the case, the President of the Personal Data Protection Office considered the following.

This proceeding concerned the processing of the Complainant's personal data in the systems (databases of the gym under...

the brand [...]) managed by F. Sp. z o.o. According to the facts stated in point 2, the merger by acquisition under Article 492 § 1 of the Commercial Companies Code (Ksh), i.e., the transfer of rights and obligations of the previous administrators to B. Spółka Akcyjna based in W., the current data administrator is B. Spółka Akcyjna based in W.

According to Article 17(1)(a) of the Regulation of the European Parliament and of the Council (EU) 2016/679 of April 27, 2016, on the protection of natural persons in relation to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation) (OJ EU L 119 of May 4, 2016, p. 1, OJ EU L 127 of May 23, 2018, p. 2, and OJ EU L 74 of March 4, 2021, p. 35), hereinafter referred to as: Regulation 2016/679, the data subject has the right to request the administrator to erase personal data concerning them without undue delay, and the administrator is obliged to erase the personal data without undue delay if the personal data are no longer necessary for the purposes for which they were collected or otherwise processed. Article 17(1)(b) of Regulation 2016/679 further states that the data subject has the right to request the administrator to erase personal data concerning them without undue delay, and the administrator is obliged to erase the personal data without undue delay when the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal basis for processing.

At this point, it is necessary to cite the content of Article 12(1) of Regulation 2016/679, which states that the administrator is obliged to take appropriate measures to provide the data subject with all the information referred to in Articles 13 and 14 in a concise, transparent, intelligible, and easily accessible form, using clear and plain language – especially when the information is addressed to a child – and to communicate with the data subject in accordance with Articles 15-22 and 34 regarding processing. The information is provided in writing or by other means, including, where appropriate, electronically. If the data subject requests it, the information may also be provided orally, provided that the identity of the data subject is confirmed by other means.

Based on Article 12(2) of Regulation 2016/679, the administrator facilitates the data subject's exercise of rights under Articles 15-22. In cases referred to in Article 11(2), the administrator does not refuse to take action at the request of the data subject wishing to exercise rights under Articles 15-22 unless it demonstrates that it is unable to identify the data subject. According to Article 12(3) of Regulation 2016/679, the administrator shall provide the data subject with information on the actions taken in response to the request under Articles 15-22 without undue delay – and in any event within one month of receiving the request. If necessary, this period may be extended by a further two months due to the complexity of the request or the number of requests. Within one month of receiving the request, the administrator informs the data subject of such an extension, providing reasons for the delay. If the data subject has submitted their request electronically, the information shall also be provided electronically where possible, unless the data subject requests another form.

In this regard, the President of the Personal Data Protection Office (UODO) indicates that communication with the data subject regarding their rights under Articles 15-22 and 34 of Regulation 2016/679 is an obligation of the data administrator, which the administrator has failed to fulfill in this case. In connection with the request for the deletion of their data submitted by the Complainant based on Article 17(1) of Regulation 2016/679, the administrator (then F. Sp. z o.o.) was obliged to respond

to the Complainant. Furthermore, after the Complainant submitted a request for the deletion of their personal data, the administrator was obliged to promptly verify the data it processed, and if such data was not found, to promptly inform the Complainant of this fact.

As evidenced by the collected evidence in the case, the Complainant, in an email dated [...] January 2019, sent to the email address of the data protection officer of the gym [...] – [...] requested the deletion of their personal data. F. Sp. z o.o. did not provide any response to the Complainant regarding the submitted request. Referring to the explanations of the Company (B. S.A) dated [...] February 2020, in which it indicates that the Complainant's message was classified by the anti-spam filter of the previous administrator's email system as a message violating security rules, resulting in its automatic transfer to the spam list, it should be noted that this does not constitute a circumstance justifying the administrator's lack of response to the Complainant's request. The President of UODO emphasizes that even messages classified by the mail server as alleged spam must be taken into account by the data administrator as requiring actions specified in Regulation 2016/679. It is the responsibility of the data administrator to ensure that the data subject can exercise their rights under Regulation 2016/679. The email address: [...] is used to contact the Company (Administrator) regarding matters related to the protection of personal data.

The situation in which the Complainant cannot exercise their right, despite having submitted a properly formulated request, is the result of the Company's failure. Moreover, directing a request arising from Regulation 2016/679 to any email address belonging to the Company is binding on it. The addressee for exercising the rights of data subjects is the administrator as such – if the administrator receives a request, it must be processed, even if a differentiated division of tasks has been established internally within the Company. In this regard, the message from the Complainant dated [...] January 2019 sent to the contact email address of the then administrator should be taken into account by the Company.

Referring the above to the established factual state, it should be emphasized that the decisive factor for the resolution that must be issued in this matter is the circumstance that the Company (Z. Sp. z o.o. as the legal successor of F. Sp. z o.o.) informed the Complainant that his data was not and is not being processed in the systems of clubs under the brand [...] only as a result of the complaint submitted to the Personal Data Protection Office. The Company simultaneously explained the situation to the Complainant.

The administrator's violation of Article 12(2) and (3) of Regulation 2016/679 in this case led to a situation in which the Complainant did not know whether the Company (F. Sp. z o.o.) had ignored his request, which forced him to enforce his rights by filing a complaint with the supervisory authority.

According to Article 58(2)(b) of Regulation 2016/679, each supervisory authority has the right, in the context of ongoing proceedings, to issue warnings to the administrator or processor in the event of a violation of the provisions of this regulation by a processing operation. In this regard, the President of the Personal Data Protection Office deems it justified to issue a warning to the administrator regarding the established violation of the provisions of Article 12(2) and (3) of Regulation 2016/679.

In this factual and legal state, the President of the Personal Data Protection Office has ruled as stated in the operative part.

Instruction: The decision is final. Based on Article 7(2) of the Act of May 10, 2018 on the protection of personal data (Journal of Laws of 2019, item 1781) in connection with Article 13 § 2, Article 53 § 1, and Article 54 § 1 of the Act of August 30, 2002 on proceedings before administrative courts (Journal of Laws of 2019, item 2325, as amended), the party has the right to file a complaint with the Provincial Administrative Court in Warsaw within 30 days from the date of its delivery to the party. The complaint is submitted through the President of the Personal Data Protection Office. The fee for the complaint is 200 PLN. The party has the right to apply for legal aid, including exemption from court costs.

Providing entity:

Department of Jurisprudence and Legislation

Information created by:

Jan Nowak

2022-07-05

Information entered by:

Łukasz Kaczmarczyk

2023-09-22 13:11:21

Last modified by:

Edyta Madziar

2023-09-28 07:29:02